CITY ATTORNEY IMPARTIAL ANALYSIS OF MEASURE S

Measure S asks the voters of the City of San Bruno whether they want to repeal Ordinance No. 1284, a zoning ordinance that requires voter approval for certain development projects in the City of San Bruno.

In 1977, the City of San Bruno adopted Ordinance No. 1284, which is codified in Chapter 12.26 of the San Bruno Municipal Code. Chapter 12.26 requires approval by a majority of the voters of the City of San Bruno before the City can issue building permits, grading permits or other approvals for the construction of buildings, other structures, land development projects or land uses that include:

- Buildings or other structures exceeding fifty feet in height;
- Buildings or other structures exceeding three stories in height;
- Buildings or other structures, modifications or redevelopment thereof in residential districts which increase the number of dwelling units per acre or occupancy, within each acre or portion thereof, in excess of limits permitted on October 10, 1974, under the then existing zoning chapter of the city of San Bruno;
- Multistory parking structures or buildings; and
- Buildings or other structures, modifications or redevelopment thereof which encroach upon, modify, widen or realign the following streets designated as scenic corridors: Crystal Springs Road between Oak Avenue and Junipero Serra Freeway; and Sneath Lane from El Camino Real to existing westerly City limits.

Measure S was placed on the ballot by the San Bruno City Council. This measure, if approved by the voters, repeals Chapter 12.26 of the San Bruno Municipal Code, in its entirety, which would remove the voter approval required for development projects in the City of San Bruno meeting one or more of the criteria listed above. As a result, the process for considering a development project that meets one or more of the criteria listed above would be completed by City staff, the City Planning Commission, the City Council, or a combination thereof, according to the state and City laws governing the process for such development project.

Measure S will become effective only if approved by a majority of the voters voting on the measure. A “yes” vote on Measure S is a vote to remove the voter approval requirements in Chapter 12.26 of the San Bruno Municipal Code. A “no” vote on Measure S is a vote to continue the voter approval requirements, as provided by the current Chapter 12.26 of the San Bruno Municipal Code.

/s/ Trisha Ortiz,

City Attorney for the City of San Bruno